
9:00 a.m. – Review Hearings

CAPITAL ONE, N.A. VS. FORTNER

CASE NUMBER: 25CVG-00896

This matter is on calendar for trial setting. The Court notes that the litigation is at issue. The Court designates this matter as a Plan III case and intends on setting the matter for trial no later than April 6, 2027. The Court notes that Defendant filed a Motion for Summary Judgment that is noticed for November 2, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. **An appearance is necessary on today's calendar.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review of the matter and trial setting. The matter is still not at issue. Cross-Defendant Diamond Janitorial Services has not filed an Answer to the Cross-Complaint filed by Winco Foods, LLC on October 13, 2025 and Cross-Defendant Diamond Janitorial Services, LLC has not filed an Answer to the Cross-Complaint filed by TEC Services, LLC on January 26, 2026. A Summons did not issue for either Cross-Complaint. The matter is continued to **Monday, November 23, 2026 at 9:00 a.m. in Department 63** for status of responsive pleadings and trial setting. The parties are ordered to file status statements no less than five court days prior to the review hearing. If the matter is not at issue, the timeline for filing a responsive pleading or seeking a default must be included in the status statement. **No appearance is necessary on today's calendar.**

DIROCCO VS. SAFEWAY INC.

CASE NUMBER: 25CV-0208997

This matter is on calendar for review regarding status of responsive pleading and trial setting. The Court notes that the litigation is now at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than April 13, 2027. Defendant has posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

HERNANDEZ, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0208412

This matter is on calendar to reset a jury trial. The previous jury trial was vacated due to unavailability of a courtroom. The Court designates this as a Plan II matter and intends to set the jury trial no later than February 9, 2027. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

JONES VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0206995

This matter is on calendar for review regarding status of dismissal. Notice of Settlement was filed on October 30, 2025 indicating that the matter would be dismissed no later than February 26, 2026. Plaintiff's Motion for Attorney Fees was granted on June 26, 2026. The matter has not been dismissed. The matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on October 12, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the October 12, 2026 hearing. **No appearance is necessary on today's calendar.**